

EXHIBIT 3: CONSTRUCTIVE EXCLUSION & TITLE IX COMPLIANCE THEATER

Subject

Respondent: Prior Lake-Savage Area Schools (ISD 719)

Statutory Focus: Title IX (34 C.F.R. § 106.44 & § 106.45), Minn. Stat. § 120A.22 (Compulsory Instruction), and MGDPA § 13.03 (Data Access)

Executive Summary

This exhibit documents the District's systemic use of administrative and technological barriers to deny the student access to public education, effectively resulting in Constructive Exclusion. Following the report of a violent assault and subsequent gender-based harassment, the District failed to offer mandated Title IX "Supportive Measures" and instead utilized an "Admin Quarantine" email filter to suppress communications regarding the student's safety. When the parents refused to subject their child to an un-safe environment without documented safety protocols, the District dismissed the Title IX complaint and unlawfully denied the Complainant their federally protected right to an appeal.

Index of Evidence Assets

Asset	File Name(s)	Relevance & Statutory Impact
Exhibit 3A: The Initial Complaint & Immediate Quarantine	20241113_OriginalComplaint_FULL_THREAD.pdf	Documents the initial reporting of the assault and the immediate triggering of the "550 5.7.1" email policy block, demonstrating the District's technological suppression of the complaint.

Asset	File Name(s)	Relevance & Statutory Impact
Exhibit 3B: Proof of Prior Knowledge	RequestForAppeal_Attachment.pdf	Contains correspondence with the █████ County Attorney's Office proving the school possessed evidence of the assault via medical records and law enforcement interviews, contradicting the District's claim of insufficient evidence.
Exhibit 3C: Constructive Exclusion Notification	20250107_FollowUpComplaint_FULL_THREAD.pdf	Formal notification to the District explicitly outlining that their failure to provide safety measures forced the student into a private placement at the parents' expense (Constructive Exclusion).
Exhibit 3D: The Admission of Quarantine	20250226_AdmisionOfQuarantine_FULL_THREAD.pdf	The District's written admission that the Complainant's email was "admin quarantined," directly contradicting their previous claims that the Complainant was sending emails to themselves.
Exhibit 3E: Title IX Dismissal	March 13 2025 E. Herman Response.pdf	The formal dismissal of the Title IX complaint based on

Asset	File Name(s)	Relevance & Statutory Impact
		an alleged "lack of concrete evidence," despite the District possessing medical and law enforcement records.
Exhibit 3F: Denial of Due Process (Appeal)	20250506_RequestForAppealProcess_FULL_THREAT.pdf 20250509_DenialOfAppeal.pdf	Documentation showing the Complainant requested appeal procedures, was ignored, and subsequently denied an appeal because the "deadline had passed," a clear violation of 34 C.F.R. § 106.45.

Exhibit 3: Timeline of Statutory Violations Regarding the 2024 Title IX Investigation

Subject [REDACTED] / Prior Lake-Savage Area Schools (ISD 719)
Legal Authority: Title IX of the Education Amendments of 1972 (34 C.F.R. Part 106); Family Educational Rights and Privacy Act (FERPA), 20 U.S.C. § 1232g; Minnesota Government Data Practices Act (MGDPA), Minn. Stat. § 13.04 & § 13.03.

I. Overview

This exhibit documents a severe and escalating pattern of statutory violations by Prior Lake-Savage Area Schools (the "District") concerning a Title IX Sexual Harassment complaint initiated in late 2024. The documented failures span from creating technological barriers to reporting, imposing structural conflicts of interest, unlawfully withholding student education records, and persistently violating Minnesota data practices laws through "blind denials" and the refusal to attach legally mandated statements of disagreement.

II. Chronological Timeline of the Title IX Claim and Violations

Date	Event / Action	Statutory Significance & Violations
10/29/2024	A severe physical assault and ongoing identity-based harassment occur in class.	Incident trigger for Title IX and disciplinary records.
11/01/2024 & 11/04/2024	Initial Complaints Blocked: Detailed written complaints regarding the assault and sexual harassment are blocked and quarantined by the District's email security filters.	Title IX Violation (34 C.F.R. § 106.8): District created an illegal technological barrier to accessible Title IX reporting.
11/15/2024	IT Audit Recovers Complaint: District IT performs an email log search	Proves the District had the technical capability to retrieve logs and confirm the

Date	Event / Action	Statutory Significance & Violations
	back to Oct 1 and locates the quarantined emails. The investigation is formally initiated.	initial reporting date, despite later claiming inability to do so.
11/2024 - 12/2024	Denial of Accommodations: District flatly denies parent's request for a trauma-informed, neutral third-party interview (CornerHouse), insisting District personnel conduct the interview despite the student's documented trauma and PHP treatment.	FERPA Violation: District weaponizes this refusal by falsely characterizing it in official records as the parent "declining" to participate, creating a misleading educational record.
01/2025 - 02/2025	Obstructed Evidence Gathering: Parent submits multiple FERPA and MGDPA data requests for email filtering logs, safety action plans, and communications. District returns heavily redacted data without citing legal authority.	MGDPA Violation (Minn. Stat. § 13.03, Subd. 3(f)): Failure to cite statutory basis for redactions/withholdings.
02/26/2025	Admission of Quarantine: Emily Herman formally confirms the initial complaint was "admin quarantined" by Google Admin due to spam filters but refuses to provide the full routing logs.	Validates the technological barrier to reporting while demonstrating selective withholding of IT routing data under FERPA.
03/04/2025 - 03/13/2025	Strategic Dismissal of Complaint: On March 4, parent demands compliance with outstanding data requests. On March 13, <i>exactly</i> as the 10-day data	Title IX Violations: 1. 34 C.F.R. § 106.45(b)(1)(iii): Structural Conflict of Interest (Emily Herman served as Investigator, Decision-Maker,

Date	Event / Action	Statutory Significance & Violations
	request window expires, the District issues a "Summary Report" dismissing the Title IX complaint. The dismissal is then used as justification to deny pending requests for investigation records.	and Title IX Coordinator). 2. 34 C.F.R. § 106.45(b)(8): Failure to notify of appeal rights in the dismissal notice.
05/06/2025 - 05/27/2025	Refusal to Correct Records or Re-Open Appeal: Parent formally requests correction of the misleading investigation report and asks to re-open the appeal window. District refuses to process the data correction request, absurdly claiming the May 6 letter "is also not a formal Title IX Complaint... because it does not allege sexual harassment."	MGDPA & Title IX Violations: Unreasonable refusal to correct data under § 13.04; Refusal to acknowledge or cure the failure to provide appeal rights.
04/13/2026 - 04/22/2026	The "Blind Denial" and Final Data Production: In response to a new request for the Nov 2024 Summary Report and all underlying investigation records, District produces only a single, heavily redacted 2-page report, falsely claiming no other data exists.	MGDPA & FERPA Violations: 1. § 13.04, Subd. 4: Missing mandatory Statement of Disagreement. 2. § 13.03, Subd. 3(f): Blind Denial (no statutory citations for redactions). 3. Unlawful Withholding: Claiming no records exist despite the report citing interviews and legal consults.

III. Summary of Major Statutory Violations

1. Title IX Structural and Procedural Failures

- **Impartiality and Conflict of Interest (34 C.F.R. § 106.45(b)(1)(iii)):** The District permitted the same individual (Emily Herman) to act as the Principal Investigator, the

Decision-Maker, and the District Title IX Coordinator. This structural conflict of interest inherently biases the investigation and dismissal process.

- **Failure to Provide Notice of Appeal (34 C.F.R. § 106.45(b)(8)):** The District dismissed the complaint on March 13, 2025, but completely failed to notify the complainant of their federally mandated right to appeal the decision, subsequently refusing to cure this error when formally notified in May 2025.
- **Barriers to Reporting (34 C.F.R. § 106.8):** The District maintained IT security filters that silently quarantined reports containing keywords related to sexual assault, creating an unlawful barrier to accessing the Title IX grievance process. The District admitted on February 26, 2025, that the initial complaint was "admin quarantined," yet failed to address the systemic Title IX reporting failure this exposed.
- **Institutional Deliberate Indifference:** The School Board was actively copied on the communications outlining these blocked reporting channels and the failure to provide mandated appeal rights. The Board's failure to take corrective action establishes actual knowledge of the violations and deliberate indifference to the hostile environment and procedural failures.

2. Minnesota Government Data Practices Act (MGDPA) Violations

- **The "Blind Denial" (§ 13.03, Subd. 3(f)):** Across multiple productions (including early 2025 and April 2026), the District repeatedly provided heavily redacted documents without providing the legally required written citations to the specific state or federal statutes justifying the withholdings.
- **Failure to Attach Statement of Disagreement (§ 13.04, Subd. 4):** After the District improperly refused to correct the misleading investigation report in May 2025, they were legally obligated to attach the parent's statement of disagreement to the record. The April 2026 production proves this mandatory attachment was never appended to the data.

3. FERPA and Data Withholding Violations

- **Maintenance of Misleading Records (20 U.S.C. § 1232g):** The District weaponized the parent's request for trauma-informed accommodations, falsely documenting it as a "refusal" to participate in order to justify dismissing the claim.
- **Unlawful Withholding of Underlying Evidence:** In its April 2026 response, the District claimed the 2-page summary report was the "entirety" of the responsive data. However, the report explicitly states the investigator conducted peer interviews, staff interviews, and consulted with legal counsel. The District's failure to produce these underlying notes, emails, and billing records constitutes an unlawful withholding of the student's education records.
- **Withholding of Routing Logs:** Despite proving IT capability to search email logs (evidenced by the Nov 15, 2024 IT audit), the District persistently withheld the full routing logs requested by the parent to document the "failed" delivery of the initial complaint, obstructing the parent's right to access complete education records.

End of Exhibit 3 V3

EXHIBIT 3A

Concern Regarding Incidents Involving our Daughter

18 messages

To

We are writing to express our deep concern and dismay regarding your recent classification of the incident involving our daughter as "horseplay gone too far."

As you are — or should be — aware, [REDACTED] was struck on the head with a chair five times over 2 separate occurrences by Reyna?, resulting in a concussion. Your characterization implies that our daughter was voluntarily engaged in rough play before the attack, which she strongly denies. It is troubling that this interpretation seems to downplay the severity of the situation and misrepresents our daughter's experience. Furthermore, we find it concerning that you made this determination before interviewing our daughter about the incident. It raises questions about how such a serious event could be assessed as such without directly hearing from the victim.

It is hard enough to understand how such a violent incident could occur suddenly in a classroom during class time with a teacher present. The fact that there was an opportunity for the teacher to intervene or deescalate what is described as "horseplay" before the assault occurred is even more concerning. When also taking into account the fact that no one else in the classroom recognized this action as something that warranted immediate attention from staff, it all points to significant issues regarding supervision and student safety.

Since learning of this incident, every professional we have consulted with has advised us to contact the police. The description of the event we have heard most often is 'felony assault' or "felony aggravated assault". As a mandated reporter, we find it surprising that you did not identify it as such. Could you please inform us what agencies you have reported the event to, and when those reports were made? We would also appreciate it if you could share the evidence you have gathered that led you to believe that [REDACTED] was involved in any form of consensual rough play before the event occurred.

It is good to hear that Reyna's parents are "taking this very seriously"; however, review of Prior Lake's [published disciplinary policy](#) points towards multiple blows to the head with a chair that result in a concussion as falling under actions that "cause or could cause injury" or "assaultive behavior". These are addressed in that policy as follows:

Removal from Class: The student may be immediately removed from class if they engage in violent or assaultive behavior, which endangers others' safety.

Suspension, Expulsion, or Exclusion: Depending on the severity (*especially since a concussion is a serious injury*) an out-of-school suspension, expulsion, or exclusion may (*in our opinion*) be warranted.

Referral to Law Enforcement: Given the gravity of the incident, a referral to law enforcement might also be pursued in addition to school disciplinary actions.

Behavioral Readmission Plan: Should the student be readmitted, they might be required to follow a behavioral plan, which could include counseling, mental health services, or other supportive interventions aimed at preventing recurrence

Which of these actions will be or have been taken?

It seemed unlikely — both to us and to the PHP assessor [REDACTED] met with today — that something this severe would be the first act of bullying against her that this peer group has engaged in.

While speaking with that assessor, [REDACTED] spoke to several concerning incidents from various peers that predate the assault. She has been hit and kicked repeatedly, including incidents where she has been intentionally hit on the head since the concussion occurred. She has numerous bruises on her legs that support her account of this being an ongoing and systemic issue. While we acknowledge that her recent behavior of self-harm could play a factor, neither ourselves nor the PHP assessor we met with saw these bruises fitting her pattern of cutting and do not believe they were self-inflicted. We have since found chat messages sent by [REDACTED] indicating she was terrified to tell anyone about the chair incident because she feared retaliation from the girl's friends, to the point of stating she was afraid they would "break every bone in my body".

In addition to the ongoing physical abuse, [REDACTED] disclosed that one of her peers - named Scarlett - has been sexually assaulting her in school on an almost daily basis. That abuse began about 2 months ago. It includes unwanted touching of her breasts and genitals, at times while being held up against a wall and unable to break free. This has been accompanied with physical and verbal abuse, with a number of her peers calling her a "gay bitch". We find it unacceptable that these types of homophobic slurs seem to go unnoticed and unrebuked at Hidden Oaks. We are astounded that what otherwise would be a serious issue to address is at this point the least of our concerns. It is not at all lost on us that this abuse started just a few weeks at most before the drastic shift in Caty's behavior - including the introduction and rapid escalation of self harm - occurred. It is worth noting that her PHP assessor - also a mandated reporter - has already contacted CPS regarding Scarlett's actions, and our understanding is that the case has been referred to the police.

It is our expectation that our daughter has a safe environment in which she can learn. At this point, our confidence that this has been occurring at Hidden Oaks, or that any of the remediations taken to date are likely to lead to it occurring in the future, is effectively zero. She has been referred to a partial hospitalization program, and will be starting Thursday, Nov 7th. It is imperative that she have a safe place to process the trauma she has incurred these last few months, and we hope that this can help provide that for her.

The impact this has - and will continue to have - on Caty's educational opportunities - is unacceptable to us. We would like to understand what concrete steps the school will be taking to ensure Caty's safety in between now and the start of her PHP program. We would also like to understand what support the school will be offering to ensure [REDACTED] any concerns about the lost time impacting her placement in AP English, or that the missed time will impact her ability to keep up when she returns. To be blunt, we view her upcoming absence as a direct result of what in the best light appears to be gross negligence by the staff, policies, and procedures in place at Hidden Oaks, and want to understand what steps the school will be taking to ensure any further impact is minimized and mitigated.

We look forward to your prompt response to these pressing concerns.

To: [REDACTED]

[Quoted text hidden]

To: [REDACTED]

I am writing to confirm you have received the email I sent Friday afternoon, as I have yet to receive any response or acknowledgement. I would like to call out that [REDACTED] has now missed 4 days of school, either as a direct result of the injury she incurred in class or the school's inability or unwillingness to speak to what steps will be taken to ensure that these incidents will not continue were she to return. [REDACTED] is entitled to a safe learning environment, and delaying response is exasperating the damage to her, not mitigating it.

[Quoted text hidden]

School Board [REDACTED]

Mon, Nov 4, 2024 at 4:54 PM

Thank you for contacting the PLSAS School Board. We want to let you know that all School Board Directors have received your email. We value and appreciate your input and are grateful for your engagement with our district.

If you've made a request or require additional follow up I, as the School Board chair, or a designee will respond. If needed, I may also forward your email to the appropriate administrator to ensure your questions or concerns are properly addressed.

We appreciate your engagement and thank you for your support.

Sincerely,

PLSAS [REDACTED]

Michael Thomas <mthomas@plsas.org>

[Quoted text hidden]

----- Forwarded message -----

Date: Mon, Nov 4, 2024 at 4:54 PM

[Quoted text hidden]

[Quoted text hidden]

Mail Delivery Subsystem

Fri, Nov 15, 2024 at 1:35 PM



Message blocked

See technical details below for more information.

[LEARN MORE](#)

The response was:

550 5.7.1 The user or domain that you are sending to (or from) has a policy that prohibited the mail that you sent. Please contact your domain administrator for further details. For more information, go to <https://support.google.com/a/answer/172179> 586e51a60fabf-2962b8bc8d7sor772585fac.8 - gsmtip

Action: failed

Status: 5.7.1

Diagnostic-Code: smtp; 550-5.7.1 The user or domain that you are sending to (or from) has a policy that

550-5.7.1 prohibited the mail that you sent. Please contact your domain

550-5.7.1 administrator for further details. For more information, go to

550 5.7.1 <https://support.google.com/a/answer/172179> 586e51a60fabf-2962b8bc8d7sor772585fac.8 - gsmtip

Last-Attempt-Date: Fri, 15 Nov 2024 11:35:44 -0800 (PST)

----- Forwarded message -----

Cc:

Bcc:

Date: Fri, 15 Nov 2024 13:35:32 -0600

Subject: Fwd: Concern Regarding Incidents Involving our Daughter

----- Message truncated -----

Mail Delivery Subsystem

Fri, Nov 15, 2024 at 1:35 PM

Message blocked



Your message to mthomas@plsas.org has been blocked. See technical details below for more information.

[LEARN MORE](#)

The response was:

550 5.7.1 The user or domain that you are sending to (or from) has a policy that prohibited the mail that you sent. Please contact your domain administrator for further details. For more information, go to <https://support.google.com/a/answer/172179> 586e51a60fabf-2962b8bc8d7sor772585fac.8 - gsmtip

Final-Recipient: rfc822; mthomas@plsas.org

Action: failed

Status: 5.7.1

Diagnostic-Code: smtp; 550-5.7.1 The user or domain that you are sending to (or from) has a policy that

550-5.7.1 prohibited the mail that you sent. Please contact your domain

550-5.7.1 administrator for further details. For more information, go to

550 5.7.1 <https://support.google.com/a/answer/172179> 586e51a60fabf-2962b8bc8d7sor772585fac.8 - gsmtip

Last-Attempt-Date: Fri, 15 Nov 2024 11:35:44 -0800 (PST)

----- Forwarded message -----

Cc:

Bcc:

Date: Fri, 15 Nov 2024 13:35:32 -0600

Subject: Fwd: Concern Regarding Incidents Involving our Daughter

----- Message truncated -----

Mail Delivery Subsystem

Fri, Nov 15, 2024 at 1:35 PM



Message blocked

Your message to [REDACTED] has been blocked. See technical details below for more information.

[LEARN MORE](#)

The response was:

550 5.7.1 The user or domain that you are sending to (or from) has a policy that prohibited the mail that you sent. Please contact your domain administrator for further details. For more information, go to <https://support.google.com/a/answer/172179> 586e51a60fabf-2962b8bc8d7sor772585fac.8 - gsmtp

Final-Recipient: rfc822 [REDACTED]

Action: failed

Status: 5.7.1

Diagnostic-Code: smtp; 550-5.7.1 The user or domain that you are sending to (or from) has a policy that 550-5.7.1 prohibited the mail that you sent. Please contact your domain

550-5.7.1 administrator for further details. For more information, go to

550 5.7.1 <https://support.google.com/a/answer/172179> 586e51a60fabf-2962b8bc8d7sor772585fac.8 - gsmtp

Last-Attempt-Date: Fri, 15 Nov 2024 11:35:44 -0800 (PST)

----- Forwarded message -----

Cc:

Bcc:

Date: Fri, 15 Nov 2024 13:35:32 -0600

Subject: Fwd: Concern Regarding Incidents Involving our Daughter

----- Forwarded message -----

Date: Mon, Nov 4, 2024 at 4:54 PM

Subject: Re: Concern Regarding Incidents Involving our Daughter

To

<mthomas@plsas.org>

[Quoted text hidden]

Mail Delivery Subsystem

Fri, Nov 15, 2024 at 1:47 PM



Message blocked

See technical details below for more information.

[LEARN MORE](#)

The response was:

550 5.7.1 The user or domain that you are sending to (or from) has a policy that prohibited the mail that you sent. Please contact your domain administrator for further details. For more information, go to <https://support.google.com/a/answer/172179> 5614622812f47-3e7c68bafd6sor8790b6e.3 - gsmt

Action: failed

Status: 5.7.1

Diagnostic-Code: smtp; 550-5.7.1 The user or domain that you are sending to (or from) has a policy that

550-5.7.1 prohibited the mail that you sent. Please contact your domain

550-5.7.1 administrator for further details. For more information, go to

550 5.7.1 <https://support.google.com/a/answer/172179> 5614622812f47-3e7c68bafd6sor8790b6e.3 - gsmt

Last-Attempt-Date: Fri, 15 Nov 2024 11:47:36 -0800 (PST)

----- Forwarded message -----

Cc:

Bcc:

Date: Fri, 15 Nov 2024 13:47:25 -0600

Subject: Fwd: Concern Regarding Incidents Involving our Daughter

----- Message truncated -----

To:

[Quoted text hidden]

[Quoted text hidden]

----- Forwarded message -----

Cc:

Bcc:

Date: Fri, 15 Nov 2024 13:47:25 -0600

Subject: Fwd: Concern Regarding Incidents Involving our Daughter

----- Message truncated -----

To:

----- Forwarded message -----

From: Mail Delivery Subsystem

Date: Fri, Nov 15, 2024 at 1:35 PM

Subject: Delivery Status Notification (Failure)

[REDACTED]

[Quoted text hidden]

----- Forwarded message -----

[REDACTED]

Cc:

Bcc:

Date: Fri, 15 Nov 2024 13:35:32 -0600

Subject: Fwd: Concern Regarding Incidents Involving our Daughter

----- Message truncated -----

To: [REDACTED]

----- Forwarded message -----

From: **Mail Delivery Subsystem**

Date: Fri, Nov 15, 2024 at 1:35 PM

Subject: Delivery Status Notification (Failure)

[REDACTED]

[Quoted text hidden]

----- Forwarded message -----

[REDACTED]

Cc:

Bcc:

Date: Fri, 15 Nov 2024 13:35:32 -0600

Subject: Fwd: Concern Regarding Incidents Involving our Daughter

----- Message truncated -----

To: [REDACTED]

----- Forwarded message -----

From: **Mail Delivery Subsystem**

Date: Fri, Nov 15, 2024 at 1:35 PM

Subject: Delivery Status Notification (Failure)

[REDACTED]

[Quoted text hidden]

----- Forwarded message -----

[REDACTED]

Cc:

Bcc:

Date: Fri, 15 Nov 2024 13:35:32 -0600

Subject: Fwd: Concern Regarding Incidents Involving our Daughter

----- Message truncated -----

To: [REDACTED]

----- Forwarded message -----

From: Mail Delivery Subsystem [REDACTED]
Date: Fri, Nov 15, 2024 at 1:35 PM
Subject: Delivery Status Notification (Failure)
[REDACTED]

[Quoted text hidden]

----- Forwarded message -----

[REDACTED]
Cc:
Bcc:
Date: Fri, 15 Nov 2024 13:35:32 -0600
Subject: Fwd: Concern Regarding Incidents Involving our Daughter
----- Message truncated -----

----- Forwarded message -----

[Quoted text hidden]

[Quoted text hidden]

Mail Delivery Subsystem [REDACTED]

Fri, Nov 15, 2024 at 2:00 PM



Message blocked

See technical details below for more information.

[LEARN MORE](#)

The response was:

550 5.7.1 The user or domain that you are sending to (or from) has a policy that prohibited the mail that you sent. Please contact your domain administrator for further details. For more information, go to <https://support.google.com/a/answer/172179> 5614622812f47-3e7b85d9a05sor1758422b6e.14 - gsmt

Action: failed

Status: 5.7.1

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550-5.7.1 prohibited the mail that you sent. Please contact your domain

550-5.7.1 administrator for further details. For more information, go to

550 5.7.1 <https://support.google.com/a/answer/172179> 5614622812f47-3e7b85d9a05sor1758422b6e.14 - gsmt

Last-Attempt-Date: Fri, 15 Nov 2024 12:00:56 -0800 (PST)

----- Forwarded message -----

Cc:

Bcc:

Date: Fri, 15 Nov 2024 14:00:44 -0800

Subject: Fwd: Concern Regarding Incidents Involving our Daughter

----- Message truncated -----

EXHIBIT 3B

To: Emily Hermann, District Title IX Coordinator
CC: Michael Thomas, Superintendent
From: **Emily Hermann**
Date: 5/6/25

Dear Emily,

I am submitting this formal complaint pursuant to **Title IX of the Education Amendments of 1972 (20 U.S.C. § 1681)** and its implementing regulations at **34 C.F.R. Part 106**, along with my rights under **FERPA (20 U.S.C. § 1232g; 34 C.F.R. Part 99)** and the **Minnesota Government Data Practices Act (Minn. Stat. § 13.04, subd. 4)**. This complaint pertains to the District's mishandling of a formal Title IX complaint filed on behalf of my daughter and outlines significant legal and procedural violations, factual misrepresentations, and denial of due process.

1. Failure to Notify of Right to Appeal

On 3/13/25, I received an emailed notice of dismissal of our formal Title IX complaint. This notice **did not inform us of our federally protected right to appeal** the decision, nor did it include the required information about appeal procedures or grounds, as required by **34 C.F.R. § 106.45(b)(3)(iii)**.

After the dismissal, I submitted a **written notice of intent to appeal**, followed by multiple email requests asking for clarification of appeal procedures and permissible grounds. **The District has refused to respond to any of these requests**. This refusal is particularly egregious considering the District has continued to respond to other communications sent via the same method and within the same timeframe. This demonstrates a **knowing and targeted disregard for the Complainant's right to appeal**, in direct violation of Title IX.

2. Factual Inaccuracies and Misleading Omissions in the Investigative Summary

The "2024 Title IX Sexual Harassment Complaint – Summary Report," dated November 1, 2024, contains **multiple factual inaccuracies and omissions** that render the record materially misleading. As a result, the report violates both **FERPA** and **Minnesota Statutes** protecting the right to accurate education records.

I am requesting that the record be formally amended or, if not amended, that this complaint be attached as a permanent **statement of disagreement** under **34 C.F.R. § 99.21(b)**.

A. Mischaracterization of the Complainant's Participation

The report frames the Complainant's inability to participate in the investigation as a voluntary refusal by her family. It states that the District "made multiple efforts and offered various methods" to collect information. This is **misleading and incomplete**:

- I made **repeated requests for a trauma-informed and unbiased investigator**, based on my daughter's age (12), clinical status (receiving treatment for self-harm), and the traumatic nature of the incident.
- The District **refused these accommodations**, asserting—without justification—that its own staff were unbiased and sufficiently trained.
- The District **refused to accept interview responses electronically**, instead insisting they be hand-delivered or mailed. Given my dual role as caregiver to a mentally ill parent and my daughter's emotional needs, this effectively **eliminated all viable means of participation**.
- The report states that the initial email containing the complaint "failed", when in actuality the email successfully reached District networks. The District claims their own security processes blocked final delivery. It is notable the District has refused to provide any evidence substantiating this claim.
- These omissions falsely frame our family's reasonable requests as obstruction, when in fact it was the District that failed to provide an appropriate or accessible reporting mechanism.

B. Denial of Access to Investigative Records

The report omits that the District **withheld nearly all investigatory records**, including redacted witness statements that appear to directly reference the Complainant. No justification for the redactions, complete withholding, or why the complainant was not entitled to equal access to data and materials was ever provided.

The report also attempts to discredit corroborating evidence because it was received "nearly two months after the complainant had left the district." This is:

- **Factually false**: My daughter remained enrolled in District services through **mid-December 2024**.
- **Misleading**: The delay was caused entirely by the District's failure to act; the Prior Lake Police Department, using the same information, was able to identify and interview the

respondent **within one week.**

C. Failure to Investigate Hostile Environment and Identity-Based Bullying

Despite clear evidence that the complainant was subjected to a **hostile educational environment**, including physical assault and identity-based bullying, the report:

- Fails to mention these claims,
 - Fails to question an individual who assaulted the complainant with a weapon in class, or make a single mention of that incident.
 - Provides no evidence that these issues were investigated with any degree of thoroughness.
-

D. Ignoring Known Incident Documented by School Resource Officer

The District accepted the respondent's claim that they "did nothing to make the complainant feel uncomfortable" at face value, without reference to:

- An incident reported directly to the District's **School Resource Officer (SRO)**, in which the respondent struck the complainant in the head **the day after she sustained a concussion.**
 - This information was either knowingly omitted from the investigation, or the District failed to consult its own SRO—both scenarios reflect a profound breakdown in investigative integrity.
-

E. Failure to Review Available Video Evidence

The complainant's reports identified a specific location (**school hallways**) and a consistent timeframe (**after lunch**) where harassment occurred—areas covered by surveillance footage.

Despite this, the District:

- **Reviewed no hallway video footage,**

- Made **no effort to corroborate reports using available evidence**, even when given dates and routes.
-

F. Excessive Delay and Denial of Process Transparency

The investigation spanned **over six months** without:

- A projected or updated timeline,
- A single status update,
- Any formal acknowledgment of delays.

The complainant received **no procedural information**, no updates, and was given no meaningful opportunity to participate. This violates both Title IX's expectations for equitable process and **FERPA's requirement for accurate and complete records**.

G. Failure to Develop a Safe Learning Plan Despite Repeated Requests

The District took **no steps to provide or propose a plan to ensure the Complainant's safety** in school, even though:

- My family **verbally alerted school staff on October 30, 2024** to ongoing threats to Caty's safety;
- **Written follow-ups were sent November 1 and November 4**, detailing the need for safety planning;
- **On November 5**, District staff were informed in writing that [REDACTED] was being kept home due to safety concerns;
- The school counselor acknowledged on **November 6** that [REDACTED] would be absent for several weeks while continuing to receive services;
- **Transportation was provided by the District** for over a month, confirming continued enrollment.

No actions were taken during this time to address our concerns, offer accommodations, or ensure a safe return. This inaction directly led to our decision to withdraw [REDACTED] in January, and

the record's implication that her withdrawal was voluntary and unprompted is demonstrably false.

3. ✎ Requested Actions

I respectfully request that the District:

1. **Acknowledge the violation of Title IX procedures** by failing to provide notice of appeal rights;
2. **Reopen the appeal window** and provide full information regarding permitted grounds and procedural timelines;
3. **Amend the investigative summary** to address the factual errors and material omissions outlined above, or formally append this letter as a **statement of disagreement** in accordance with 34 C.F.R. § 99.21;
4. **Provide written confirmation** of the corrections or a written explanation of refusal within **30 calendar days**, as required under **Minn. Stat. § 13.04, subd. 4**;
5. Take corrective action to ensure **future Title IX investigations** include timely updates, access to appeal, trauma-informed accommodations, accessible communication mechanisms, and meaningful participation by complainants.

Sincerely,

[REDACTED]

Parent of [REDACTED]

[REDACTED]

From: [REDACTED]
Sent: Tuesday, November 05, 2024 7:37 AM CST
To: [REDACTED]
Subject: Fwd: [REDACTED]

[REDACTED] received this right now.

----- Forwarded message -----

From: **HOMS Attendanc** [REDACTED]
Date: Tue, Nov 5, 2024 at 7:37 AM
Subject: Fwd: [REDACTED]
[REDACTED]

FYI

----- Forwarded message -----

From: [REDACTED]
Date: Tue, Nov 5, 2024 at 6:48 AM
Subject: [REDACTED]
[REDACTED]: HOMS Attendanc [REDACTED]

[REDACTED] 6th Grader, will be absent today due to our concerns for her health, wellbeing, and safety while at school.

[REDACTED]
6th Grade Counselor
Hidden Oaks Middle School

From: [REDACTED]
Sent: Wednesday, November 06, 2024 10:43 AM CST
To: [REDACTED]

<hnmichaelson@plsas.org>

Subject: CB

Hi All,

[REDACTED] next four weeks. Please exempt any assignments that were given starting 10/30. If you have any questions, please let me know.

Thanks,
[REDACTED]

6th Grade Counselor
Hidden Oaks Middle School

Case

BJ

Jessica

4/24/2025 8:03:07 PM

 Reply All Encrypt: This message is encrypted. Recipients can't remove encryption. 28 Supp #1.pdf Medical Records.PDF

Mr. [REDACTED]

I will provide your request to our data practices attorney, we will comply in as much as we can. I know Jessica has provided you with the initial police report in this matter. There was the second report by Officer Baker that I'm having released to you now, as well as Caty's medical records that were obtained as part of this case.

To answer your first question: I never said there was no evidence in our file regarding the assault by Scarlett. What I said was that there was no last name for Scarlett in the county attorney's file. I interpreted your question as asking for identifying information for Scarlett. Re-reading it, I believe you are asking whether there is any information in our file to show the school had knowledge of Scarlett's assault of Caty. And to answer that: the evidence we had regarding Scarlett's assault was (1) Caty's statement to Officer Baker that Scarlett hit her on the back of the head on Tuesday, and (2) the medical records where it indicates [REDACTED] reported to the doctor that she had been struck with a chair on Monday and punched in the head on Tuesday (see page 2 of medical records). We do not have any other evidence relating to Scarlett's assault. My office has no information as to what, if anything, was relayed to the school regarding Scarlett's actions.

Thank you,



Jessica [REDACTED]
Victim Witness Assistant
[REDACTED] County Attorney's Office
952-496-8410

 Message Encryption by Microsoft Office 365

EXHIBIT 3C

Follow-Up on Formal Complaint and Request for Action and Formal Request for Investigation into Policy 506.1 Violations

11 messages

Dear Michael, Emily, [REDACTED] and [REDACTED]

We are writing to follow up on our **Formal Complaint and Request for Action** submitted on 1/4/2025 regarding the violent assault that occurred on October 29, 2024, and the subsequent lack of adequate response from the district. To date, we have not received acknowledgment of receipt or any substantive response addressing the issues outlined. Given the severity of the concerns raised, including violations of MN Statutes, Title IX, and FERPA, this continued silence is deeply troubling.

The school has now failed to meet the timeline mandated by MN Stat. § 13.04 to address inaccurate records within 30 days of written notification. The absence of action to correct these inaccuracies is yet another example of the district's non-compliance and disregard for statutory obligations.

Upon further review, we believe the district's failure to respond appropriately also constitutes multiple violations of Policy 506.1 – Bullying Prohibition:

1. Failure to Investigate and Respond Timely:

- Policy 506.1 mandates that complaints involving violence and harassment be investigated within three school days of receipt and that protective actions for the victim be implemented immediately. It has now been 67 days since we submitted our initial complaint, yet no investigation results or remedial actions have been provided.

2. Failure to Provide a Safe Environment:

- The district has failed to uphold its duty to ensure a safe and supportive environment for our daughter, despite evidence of severe and persistent harassment and physical harm during class.

3. Negligence in Mandatory Reporting Requirements:

- The failure to report and investigate the assault under MN Stat. § 260E demonstrates a lack of compliance with mandatory reporting obligations for maltreatment of minors.

4. Retaliation and Obstruction:

- The email blocking incident, subsequent lack of access to records, and failure to comply with obligations regarding inaccurate records suggest a pattern of retaliation and obstruction, which violates both Policy 506.1 and Title IX anti-retaliation provisions.

[REDACTED] is the school principal or building record taker, we are formally requesting that Michael and the Office of the Superintendent initiate an investigation into violations of Policy 506.1 – Bullying Prohibition as outlined in this and prior communications.

We are also gravely concerned that our daughter's protected status—as a lesbian who uses she/they pronouns—has contributed to the lack of urgency, transparency, and responsiveness in addressing this

matter. Under Title IX (20 U.S.C. § 1681) and the Minnesota Human Rights Act, discrimination based on gender identity and sexual orientation is strictly prohibited.

In addition to the already pending matter involving the sexual abuse our daughter suffered in class, we believe this warrants, and will be asking the US Department of Education to proceed with, an investigation into whether:

1. The victim's protected status played a role in the failure to recognize the incident as gender-based harassment or discrimination.
2. The district's refusal to provide timely updates and blocked communication channels represents retaliation under Title IX (34 C.F.R. § 106.71).
3. The lack of appropriate remedial actions constitutes a hostile educational environment, violating federal and state anti-discrimination laws.

The district's failure to respond has already caused our daughter to miss three documented days of school, further disrupting her education and well-being. Additionally, to ensure she has access to a safe learning environment, we have been forced to enroll her in a private school at our own expense. This burden was entirely avoidable had the district fulfilled its obligations under Policy 506.1, FERPA, Title IX, and MN Statutes.

To prevent further delays and ensure compliance with legal obligations, we are requesting the following actions within 48 hours:

1. **Formal Acknowledgment:** Written acknowledgment of receipt of our Formal Complaint and Request for Action and this follow-up.
2. **Investigation Timeline:** Confirmation of when the investigation required under Policy 506.1 and MN Stat. § 260E will be completed and when we can expect results.
3. **Disciplinary Records:** Provision of the requested records related to disciplinary actions against the perpetrator and any actions taken regarding the teacher's failure to intervene, as required under FERPA and MN Stat. 13.32.
4. **Corrective Measures Plan:** Documentation of actions taken to restore safety and prevent recurrence, including steps to address potential discrimination based on our daughter's protected status.
5. **Compliance with Title IX Requirements:** Written explanation of how the district intends to address its failure to provide accessible reporting mechanisms, along with a plan to rectify email filtering policies and ensure future compliance. We expect this will include an apology for the suffering the district's non-compliance has put our family through to date.

We are again formally documenting our concern that the district's refusal to provide requested records continues to impede our ability to gather evidence required to support our claims. The lack of transparency in providing these records violates our rights under FERPA, MN Stat. 13.32, and Title IX and further demonstrates retaliation and obstruction that we intend to address as part of our escalation.

If these requests are not addressed within the specified timeframe, we will have no choice but to escalate this matter to the U.S. Department of Education's Office for Civil Rights (OCR) and MN Department of Education without full information at our disposal, and note this is the result of the District's failure to respond to multiple requests and formal complaints of objection in those claims.

Additionally, we will move forward with the pursuit of all available legal remedies, including bringing these failures to the attention of the press and media to ensure accountability and compliance with state and

federal laws.

Sincerely,

School Board

Tue, Jan 7, 2025 at 8:28 PM

Thank you for contacting the PLSAS School Board. We want to let you know that all School Board Directors have received your email. We value and appreciate your input and are grateful for your engagement with our district.

If you've made a request or require additional follow up I, as the School Board chair, or a designee will respond. If needed, I may also forward your email to the appropriate administrator to ensure your questions or concerns are properly addressed.

We appreciate your engagement and thank you for your support.

Sincerely,

PLSAS Board Chair

Michael Thomas <mthomas@plsas.org>

Wed, Jan 8, 2025 at 3:33 PM

and

Thank you for your most recent email. Attached you will find responses to the points you raised.

My best,

Michael

[Quoted text hidden]

 January 8 2025 Dr Thomas Response.pdf
206K

To:

[Quoted text hidden]

 January 8 2025 Dr Thomas Response.pdf
206K

To: Michael Thomas <mthomas@plsas.org>, Emily Herman

Mr Thomas,

Thank you for your response. While we appreciate the time and effort taken to address our concerns, many responses provided fail to align with the district's obligations under state law, federal law, and PLSAS policy. We remain deeply concerned about the district's approach, which continues to deny our daughter her lawful rights and protections.

We acknowledge your preference to engage with the Department of Education as soon as possible, and share this goal. However, doing so before we have exhausted every effort to resolve our concerns using the due process accorded to us under PLSAS policy and MN law seems to aim at creating District defensibility rather than addressing the core issues directly. As much as we wish otherwise, this is the proper forum for the issues we are raising.

It is clear that the quickest and most effective resolution would have been adherence to district policies and legal obligations in response to our concerns. Failing that, a timely and substantive response to our lawful requests for policy clarification or other rights accorded to us by PLSAS policy and MN law will suffice.

1. Personal Property

We appreciate the school gathering Caty's property and making an accommodation that limits our families' need to be exposed to Hidden Oaks. We will make arrangements for time off and come by as soon as possible. We understand from earlier communications how much the District values their iPads, and will be sure to bring the District's device with us. We acknowledge this response as being made "in good faith".

2. Results of Disciplinary Actions

We note the district's refusal to provide the results of disciplinary actions citing legal limitations is inconsistent with Policy 526 on **Hazing**, which explicitly allows for disclosure in certain cases. Caty's initial delay in reporting the attack and unwillingness to go into details was due to a lack of trust in the district's willingness to hold their attackers accountable or protect them from retribution. This fear is validated by the district's failure to protect her from the attack that occurred under direct staff supervision, take steps outlined in their policy - including the "immediate removal from class" requirement in Minn. Stat. § 121A.61, or communicate alternate disciplinary measures sufficient enough to prevent recurrence that were taken to ensure their safety.

As they are realizing the safety their current private education has provided, they are more willing to go into details about the trauma they experienced. They have identified [REDACTED] as one of Scarlett's friends who was involved in the bullying and homophobic slurs that they experienced in the weeks leading up to the attack. This is not a surprise to us - as noted in the email sent November 1st, it seemed very unlikely that such a violent and bold assault would be the first act of bullying the child engaged in. This makes it clear to us that the incident does indeed fall under Title IX protections, making the district's lack of transparency and failure to provide for their safety even more troubling. We formally request clarification on the statutory basis for disclosing outcomes under Policy 526 and how absent such relief the District intends to demonstrate its obligation to provide for Caty's safety in this case. We acknowledge this response as being made "in good faith", and thank the District for their compliance with state law.

3. Written Determination for Discipline Complaint

We agree that the District promptly appointed an investigator into the second incident of sexual assault. It is disingenuous to imply that Emily was also involved in any investigation of the

physical assault. We would highlight her failure to ask a single question into that matter, and her only communication on the matter stating in writing that the District considers the investigation complete.

The lack of adequate response to our written Discipline Complaint of the District's failure to take appropriate action for the physical assault, failure to involve a neutral investigator with trauma-informed training, and refusal to allow email submissions for interviews violated Title IX and further demonstrated the inadequacy of the district's response. These are some of the key reasons we decided it would be inappropriate to allow the District opportunity to inflict further trauma by leading the investigation into the sexual assault.

With over 60 days passed since the request, we expect a timeline for responding to both complaints. We reject the assertion that this response was made in good faith and request this matter be treated as a formal complaint.

4. Applicability of Minn State 121A.49

We apologize, you are of course correct. The relevant statute outlining the District's obligation is 121A.61, in which Subdivision 3 paragraph (s) identifies that school policy must include a provision that states a student **must** be removed from class immediately if the student engages in assault or violent behavior. As noted in our email on Nov 1st this does not appear to have happened. Further, Subdivision 4 outlines the minimum requirements for the Discipline complaint procedure must adhere to in order to provide [REDACTED] with equal protection under the law. We continue to await details on when the school intends to fulfill their obligation to respond to our complaint. We acknowledge this response as having been made "in good faith".

5. Written request dated December 6th to correct inaccurate records related to this incident

MN Statute 13.04 Subdivision 4 outlines the procedure when data is not accurate or complete, which requires us to notify the responsible authority in writing about the nature of our disagreement. You acknowledge we did this. Upon receiving that notification, the District was obligated to take action within 30 days, which it did not do. We find the District's assertion that they "did not realize" their obligation to respond to our written notification of inaccuracy insufficient. As the District has failed to meet their statutory obligation, we reject the assertion that this response was made "in good faith". Please treat this as a formal complaint stating such, and provide us with a copy of the record once it has been amended.

6. Request for records documenting actions taken to ensure Caty's safety

The District was aware [REDACTED] had been physically assaulted Oct 29th. It was verbally notified of the sexual abuse the same day, and was aware an email with more details was forthcoming. That email was sent and received by the District's network on Nov 1st, and stated "We would like to understand what concrete steps the school will be taking to ensure Caty's safety in between now and the start of her PHP program". The District was then sent a follow-up email on Nov 4th. It was also sent emails at the [REDACTED] inbox noting that we were keeping [REDACTED] home because of "concerns for her health, wellbeing, and safety while at school" on November 5th and November 6th. None of these emails generated any delivery failure notifications, or elicited any response from the school. [REDACTED] was coming up on the end of their PHP stay, we again reached out to the District requesting details on steps to ensure her safety, which was again ignored until your response on 1/8. This lack of timely response and failure to demonstrate concrete actions undermine the district's credibility and commitment to student safety. We appreciate the District providing us with the information needed for us to

proceed with our claim in this case, and agree it's best for further discussion on this matter be between the District and Departments of Education. We note this response was not received within the 10 day timeline required by statute. Thus it represents a failure to provide our daughter with equal protection under the law, and cannot be interpreted as "in good faith". Please treat this as a formal complaint stating such.

7. Data Request regarding [REDACTED]

Thank you for your response. We reiterate it is inconceivable that proper application of PLSAS policy for a teacher who failed to notice an attack that the County classifies as 3rd degree felony assault result in no action. We reiterate that failing to notice the first attack is bad enough, but failure to notice or prevent the second attack constitutes negligence, and should have been investigated as such. We acknowledge that at the time the District was operating on the basis of an inaccurate record, and the law enforcement investigation was still pending. We look forward to receiving a timely written outcome of further investigation into this matter. As this response was not received within the 10 day timeline outlined by MN statute, it failed to provide our daughter with equal protection under the law and thus cannot be interpreted as "in good faith". Please treat this as a formal complaint stating such.

8. Acknowledgement of requests for investigation

Thank you for your response re: 8 and 9. PLSAS policy calls out yesterday (1/8/2025, or 3 days after receipt of the complaint) as the deadline for an investigator to be appointed in these cases. This obligation was clearly missed. We expect to be informed when the District meets their obligation, and provided with a timeline regarding when we can expect the District's written response. Further, we note that by failing to respond promptly per statute, our daughter has not been provided equal protection under the law in this matter, and thus the District's response cannot be categorized as "in good faith". Please treat this as a formal complaint stating such.

9. Complaint re: failure to comply with Title IX

Thank you for the apology regarding the delay in receiving the original email. This is not an acknowledgement that our rights under Title IX were violated, and fails to address Joe's deliberately indifferent response. The District's continued insistence that we could not submit answers to Caty's interview without an unreasonable delay indicates that any review that has been done is insufficient to bring the District into compliance with Title IX, and absent any change, we see no reason continuing these reviews would bring the District into compliance moving forward. The [US Department of Education's Final Rule](#) explicitly enumerates email as one of the means of reporting the school is obligated to provide in item 4. We formally request that the District clarify their policy and inform us what words we could have used to accurately describe the assault without triggering the District's filtering policies.

Item 5 forbids responses to complainants that are deliberately indifferent, and require supportive measures to be offered. "I cannot help you" clearly does not meet this bar. As noted in our previous email, we expect an apology for the suffering caused - including deliberate indifference, acknowledgement of the District's failure to comply with their obligations in our case, and for the school to provide information regarding the specific steps they will take to come into compliance. Your choice to highlight the insufficient apology and not speak to or acknowledge the serious concerns we raise cannot be described as a response "in good faith". Please treat this as a formal complaint stating such.

10. Delivery Failure Notification

Thank you for your response. Please note that this is different from the response I received from Emily on 12/20, which stated the block notification was the result of an email the school sent to me. While we appreciate the acknowledgement that school email policies continue to provide barriers to the District's ability to promptly reply to requests made to the school and no more action is requested, we want to highlight that indicating this is the same response we received on 12/20 is inaccurate, and thus another example of the school's not answering in "good faith". Please treat this as a formal complaint stating such.

11. Request to initiate an investigation into violations of 506.1 and MN chapter 250E

Thank you for your response. While we agree that Policy 506.1 requires intimidating, threatening, abusive, or harmful conduct between students, we do not agree with the District's interpretation that the policy only applies to students. We are stating that Raina's assault on [REDACTED] and the attacks and homophobic slurs that preceded it, meet the definition of Bullying, and applicable policy should apply. Raina's behavior clearly caused harm, inflicted emotional distress, and was directed towards [REDACTED] as a result of her gender and sexual identity. We note we have written assessments in which child health professionals at Caty's PHP program explicitly state "She experienced **bullying** at school *including negative comments about gender expression and sexuality*", as well as "This is consistent with the challenges which prompted her referral for PHP services and with the **bullying** which she endured." *Continued denial of our request after this clarification will be met with an appeal on the grounds that peer child professionals have documented her experience as such.*

Policy 506.1 article 1 states "However, to the extent such conduct affects the educational environment of the school district and the rights and welfare of its students and **is within the control of the school district in its normal operations**, the district intends to prevent bullying and to **take action to investigate, respond to, and to remediate, and discipline for those acts of bullying which have not been successfully prevented**. As the most severe act of bullying occurred during class under a teacher's direct supervision, it was clearly under the control of the District in its normal operations. The District's failure to remediate, discipline, or take any action that generates a record towards the teacher in this case deviates from this posted policy.

Article III paragraph D states "No **teacher, administrator**, volunteer, contractor, or **other employee of the school district** shall permit, condone, or tolerate bullying."; We are unable to see how a failure to discipline or take other action towards a teacher who failed to prevent an act of bullying - one that resulted in a concussion and requires 9 months of medical intervention - can be seen as anything other than tolerance of and permitting bullying. The administration and [REDACTED] are both in violation of this policy.

We want to stress *every child care professional that has been provided with the same information we provided the District in our email Nov 1st* has immediately recognized this as Bullying. Article VII paragraph D states "A teacher, **school administrator**, volunteer, contractor, or **other school employee** shall be particularly alert to possible situations, circumstances, or events that might include bullying". It is reasonable for us to expect [REDACTED] and Emily, in their particular alertness, to have noticed the same signs as signals as their peer professionals, and have identified this accordingly. It is clearly possible that bullying may be a factor in an incident that is classified by the County as 3rd degree felony assault. [REDACTED] *never interviewing [REDACTED]* as a part of his investigation cannot be categorized as being particularly alert. It is reasonable for us to expect a properly trained and senior school official who is being particularly alert for bullying

would have noticed the same signs during his interview as other peer professionals and acted accordingly. These actions violate section VII paragraph D and section III paragraph D.

Article III paragraph I states "The school district will act to investigate all complaints of bullying reported to the school district *and will discipline or take appropriate action against any student, teacher, administrator, volunteer, contractor, or other employee of the school district* who is found to have violated this policy.", making it plainly evident that this policy does not apply only to students.

As this complaint involves [REDACTED] the building report taker, section VII paragraph C identifies the office of the Superintendent as the appropriate forum for us to bring this complaint. We expect the District to fulfill their obligation and investigate accordingly. We also note that it is reasonable for us to expect that a senior District administrator would be familiar with District policy. The District's choice to misrepresent Policy 506.1 by stating that it only applies to students is clearly disingenuous and cannot be interpreted as a response "in good faith". Please treat this as a formal complaint stating such.

We thank the District for the responses that were made in good faith or fully resolved a request. We look forward to the District responding to the unresolved items in a manner and within a timeframe that meets their lawful obligations and provides our daughter equal protection under said law.

[Quoted text hidden]

School Board [REDACTED]

Thu, Jan 9, 2025 at 11:43 PM

[Quoted text hidden]

To: [REDACTED] Michael Thomas <mthomas@plsas.org>, Emily Herman [REDACTED]

Bcc: Andy OBrien [REDACTED] Pri meehar [REDACTED]

Dear Mr. Thomas,

I hope this message finds you well. I am writing to follow up on my email sent on Jan 9th, 2025, which addressed multiple significant concerns related to our daughter's safety, district compliance with applicable policies, and legal obligations. As of today, we have not received any response or acknowledgment of our correspondence. This lack of response, beyond being deeply disappointing, appears to represent a failure to comply with both district policy and Minnesota law.

To assist in expediting a resolution, I have enumerated below the outstanding items requiring attention and where the lack of response constitutes a potential violation:

1. Written Determination for Discipline Complaint

- **Unresolved Issue:** Over 60 days have passed since our original complaint regarding the District's failure to appropriately address the physical assault on our daughter. Minnesota law (Minn. Stat. § 121A.61) requires a timely and substantive response, which we have yet to receive.
- **Violation:** Failure to provide a written determination or timeline within the statutory period denies equal protection under the law and does not constitute a response made in good faith.

2. Correction of Inaccurate Records

- **Unresolved Issue:** Our written request dated December 6th, under Minn. Stat. § 13.04 Subdivision 4, to correct inaccuracies in our daughter's records has gone unanswered. This statute required action within 30 days.

- **Violation:** The District's failure to respond to this statutory obligation is unacceptable and constitutes a violation of the Minnesota Government Data Practices Act.

3. Results of Disciplinary Actions

- **Unresolved Issue:** Policy 526 on Hazing explicitly allows for the disclosure of disciplinary actions in certain circumstances. We requested clarity on the specific school policy and statutory provisions used to justify disclosure in these cases, as well as an explanation as to why the same statute or policy is not applicable in this instance. The district's refusal to provide this clarity undermines our daughter's confidence in the school's ability to protect her safety.
- **Violation:** Failure to provide transparency or the statutory basis for disclosure within a reasonable timeframe contravenes the District's stated policy and obligations under Minnesota law.

4. Request for Records Documenting Safety Measures

- **Unresolved Issue:** The District has failed to provide documentation of any actions taken to ensure our daughter's safety following multiple assaults.
- **Follow-Up Request:** We request that the District either provide documentation of the steps it did take to ensure her safety or acknowledge that it failed to take any measures despite receiving numerous requests to do so.
- **Violation:** Minnesota law requires the District to act promptly and substantively when addressing issues that directly impact student safety. The lack of timely response and failure to implement any safety measures falls short of this requirement.

5. Title IX Compliance and Investigative Process

- **Unresolved Issue:** Our complaints of bullying, harassment, and assault under Title IX remain unaddressed, with the District missing key deadlines, including the three-business-day timeline for appointing an investigator per district policy.
- **Violation:** The delay in meeting procedural obligations under Title IX, coupled with responses that fail to meet the "good faith" standard, further exacerbates the harm to our daughter and violates federal law.
- **Additional Requests:** We seek clarification on what words we could have used to accurately describe the assault without triggering the District's email filtering policies. Additionally, we request an acknowledgment and apology for the deliberate indifference shown when our Title IX complaint was blocked and subsequent failure to rectify the situation promptly. Furthermore, we request specific steps the District will take to support the acceptance of email reporting of complaints in compliance with Title IX requirements.

6. Policy 506.1 Violations and Failure to Investigate

- **Unresolved Issue:** The District has yet to act on our formal request to investigate violations of Policy 506.1 and Minnesota Chapter 250E related to bullying and student safety. Policy 506.1 explicitly states that all complaints of bullying violations will be investigated. The policy further mandates specific timelines, including the appointment of an investigator within three business days of receiving a complaint and the provision of a written determination within ten business days. Despite these clear requirements, no action has been taken.
- **Follow-Up Request:** We request a clear outline of the timelines the school is obligated to adhere to under Policy 506.1, including deadlines for initiating investigations and providing outcomes. Given that the District has already failed to meet the three-business-day deadline for appointing an investigator, we also request an explanation of the adjusted timeline the school intends to follow and confirmation that these revised deadlines will be met moving forward.
- **Violation:** Failure to investigate and provide appropriate disciplinary actions, especially when incidents occurred under staff supervision, represents a deviation from district policy and Minnesota law, and it undermines the protections Policy 506.1 is designed to provide.

Request for Immediate Action

Given the gravity of these issues and the significant delays already experienced, we request the following:

1. Acknowledgment of this communication within one business day.

2. A detailed timeline for addressing each of the unresolved issues outlined above.
3. Clarification of any statutory or policy-based limitations that the District believes apply to its obligations.
4. Assurance that all responses moving forward will be timely and meet the standards required under district policy and state and federal law.

If we do not receive an adequate response within five business days, we will have no choice but to escalate our concerns to state and federal authorities, including the Minnesota Department of Education and the U.S. Department of Education's Office for Civil Rights. Additionally, we will move forward with bringing our story to the attention of the media to ensure public awareness and accountability.

We remain hopeful that the District will act promptly to address these serious concerns and fulfill its obligations to ensure the safety and well-being of all students.

Sincerely,

[Quoted text hidden]

School Board

Wed, Jan 15, 2025 at 6:01 AM

[Quoted text hidden]

Michael Thomas <mthomas@plsas.org>

Wed, Jan 15, 2025 at 9:27 AM

Thank you for your follow-up and I will thoroughly review and respond no later than the end of next week.

My best,

Michael

[Quoted text hidden]

To: Michael Thomas <mthomas@plsas.org>

Bcc: Andy OBrien; Bri Meehan

Mr Thomas,

Thank you for acknowledging my follow-up. However, the timeline you have proposed—to respond by the end of next week—fails to address the urgency of the issues outlined, many of which involve the District's obligations under Minnesota law, federal law, and district policies. Several deadlines for action have already passed, and further delays continue to deny my daughter her lawful rights and protections.

To reiterate:

- **Policy 506.1** requires an investigator be appointed within three business days of a complaint. This deadline has already passed without action.
- **Minn. Stat. § 13.04 Subdivision 4** requires action on data correction requests within 30 days, another deadline the District has missed.
- **Minn. Stat. § 121A.61 and Title IX** set clear requirements for prompt investigation and resolution of complaints, which remain unfulfilled.

Additionally, in the District's January 8th, 2025 response, it was acknowledged that the Discipline Complaint process would begin that day. This acknowledgment obligates the District to adhere to specific timelines, including:

1. The appointment of an investigator within three business days, which should have occurred by January 11th, 2025.
2. The provision of a written determination within ten business days, which would be due by January 22nd, 2025.

While a full response to our broader concerns by next Thursday may be acceptable, we expect to receive committed timelines for addressing the specific unresolved items outlined in this letter by the close of business tomorrow, January 16, 2025.

Given the statutory and policy requirements already in default, I request an immediate timeline for resolution of the items listed in my previous correspondence, with written acknowledgment that the District will act in compliance with its obligations. Delaying substantive engagement until the end of next week will force us to escalate to state and federal authorities, as well as engage the media to ensure accountability.

Please provide confirmation of your intended actions no later than the close of business tomorrow, January 16, 2025.

Sincerely,

Draft To: Michael Thomas <mthomas@plsas.org>

[Quoted text hidden]

EXHIBIT 3D

Request for update

7 messages

Good morning,

Today marks the 4th business day since the District received our email (id CAOexsV6Akji3H_TJ2mVh=

yet to receive a response or acknowledgement of receipt. Can you confirm this email was successfully delivered and not filtered or blocked by District systems?

Additionally, please consider this as what is now our 3rd request for the District to explain their categorization of our Jan 27th request as "amended". We note we first asked for this clarification on Feb 13th, 7 business days ago. What is the reason the District has been unable to provide this information to date?

Thank you,

[Quoted text hidden]

This email serves as confirmation of receipt, and the district will respond within the required statutory timeline.

Thank you,
Emily



Emily Herman
Executive Director of Administrative Services
Title IX Coordinator & Human Rights Officer
Prior Lake-Savage Area Schools
952-226-0021

The information contained in this electronic message may be confidential information and is intended only for the use of the individual(s) to whom this electronic message is addressed. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this electronic communication or any attachment thereto is strictly prohibited. If you have received this electronic communication in error, you should immediately return it to us and delete the message from your system. Thank you.

[Quoted text hidden]

Thank you, Emily.

I have no desire to get into a legal argument with you, but point out that the statutory obligation is for "The responsible authority or designee shall comply immediately, if possible, with any request made pursuant to this subdivision, or within ten days of the date of the request, excluding Saturdays, Sundays and legal holidays, if immediate compliance is not possible."

In regards to my request that the District clarify why they have been referring to my records request as "amended", what specifically is preventing the possibility of a reply for now 8 business days?

Thank you,

[Quoted text hidden]

The question regarding the "amended" data request was addressed on February 14th: "The District responds to data requests to the best of our ability and understanding of the request. When circumstances change or additional clarification becomes available, we work to provide updates accordingly."

There is no additional responsive data related to this request.

Regarding your email on February 14th at 2:00 PM stating, "be trivial to open up that email, pull the headers, and send it over to fulfill this request for full record data," in reference to message ID [CAKBVTXkoGY2WzXkqp2DbEjDWZwLQI](#)

- The original message, including headers, was attached to my previous response on February 14th at 1:08 PM.
- Additionally, this email was included in SO Data Request File 1, which was provided on January 28th.

There is no additional responsive data related to this request.

Regarding your email on February 16th at 12:01 AM:

- A [Google Folder](#) has been made available containing the PST files and a single PDF file related to your additional data request.
- The PDF contains one email from the requested data that required redaction. The District does not have the capability to redact PST files, so this email was provided separately.
- Please note: Access to the Google Folder will expire in 30 days.

The District was able to find further clarification regarding message ID [CAOexsV7Yx7xCdTC0w_+9XRmda4_](#)

- The email was delivered to Michael Thomas and others and has already been included in the responsive data provided to you.

spam filtering policies. The District has the Google Spam filter enabled; however, it does not control Google's spam filtering policies or their administration.

- This message ID corresponds to the original email, not a Delivery Status Notification email.
- Google Admin's Delivery Status Notification emails are not sent from the District's domain and are not maintained as District data.

Small log events

AND

Message ID is [redacted]

Sender is [redacted]

ADD CONDITION

GROUP RESULTS

SEARCH

Showing 1-8 of 8 results

Date	Message ID	Subject	Text	From (header address)	From (display)
2024-12-11T13:26:52-05:00	<CkOx...@gmail.com>	ATTN: Michael Thomas - full	Admin question	michael@gmail.com	[redacted]
2024-12-11T13:26:54-05:00	<CkOx...@gmail.com>	ATTN: Michael Thomas - full	Re: full	michael@gmail.com	michael@gmail.com

All emails sent to and from the District's domain are subject to standard security measures. No unique security measures external email domains.

This email constitutes the full extent of the responsive data required by law in response to your February 16th email.

Thank you,
Emily



Emily Herman

Executive Director of Administrative Services
Title IX Coordinator & Human Rights Officer
Prior Lake-Savage Area Schools
952-226-0021

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[Quoted text hidden]

Hi Emily,

I've had a chance to review the responsive data, and am following up on my previous request and your response regarding the production of requested records. Your response remains legally insufficient under FERPA (20 U.S.C. § 1232g), MN Statute 13, and Title IX (34 C.F.R. Part 106). Your failure to provide critical

system logs, filtering actions, and email rejection records constitutes a direct violation of all three statutes, particularly given that this request pertains to evidentiary gathering in an active Title IX investigation.

Your response included PST files containing only emails, but no system logs, filtering actions, or email rejection records despite the fact that these records were explicitly requested. This failure is unlawful for the following reasons:

- Under Minn. Stat. 13.03, Subd. 1, the District is required to provide all data it maintains, including metadata, system logs, and filtering records. If the District possesses any of these records, it is required by law to produce them unless a statutory exemption applies. No such exemption has been cited.
- Under FERPA (34 C.F.R. § 99.10), the District must provide access to any education records related to my child. Email rejections, filtering logs, and system logs fall under education records if they impact the communication related to my child's Title IX investigation.
- Your response includes a screenshot of such logs, confirming that they do exist and the District has access to them.

Under FERPA (34 C.F.R. § 99.10, § 99.31, and § 99.35), the District must retain and provide access to education records for parents. Your response has failed to meet these obligations in the following ways:

- Failure to provide unencrypted, unredacted full records of all emails related to my FERPA request, including full unencrypted email headers and attachments.
- Failure to provide access to logs documenting email rejections, filtering actions, or any administrative blocks. These records are education records under FERPA if they pertain to communications about my child's Title IX case.

This request pertains to Title IX evidentiary gathering, and the District is required under 34 C.F.R. § 106.45(b)(5)(i) to preserve and disclose relevant evidence. The following failures demonstrate clear obstruction:

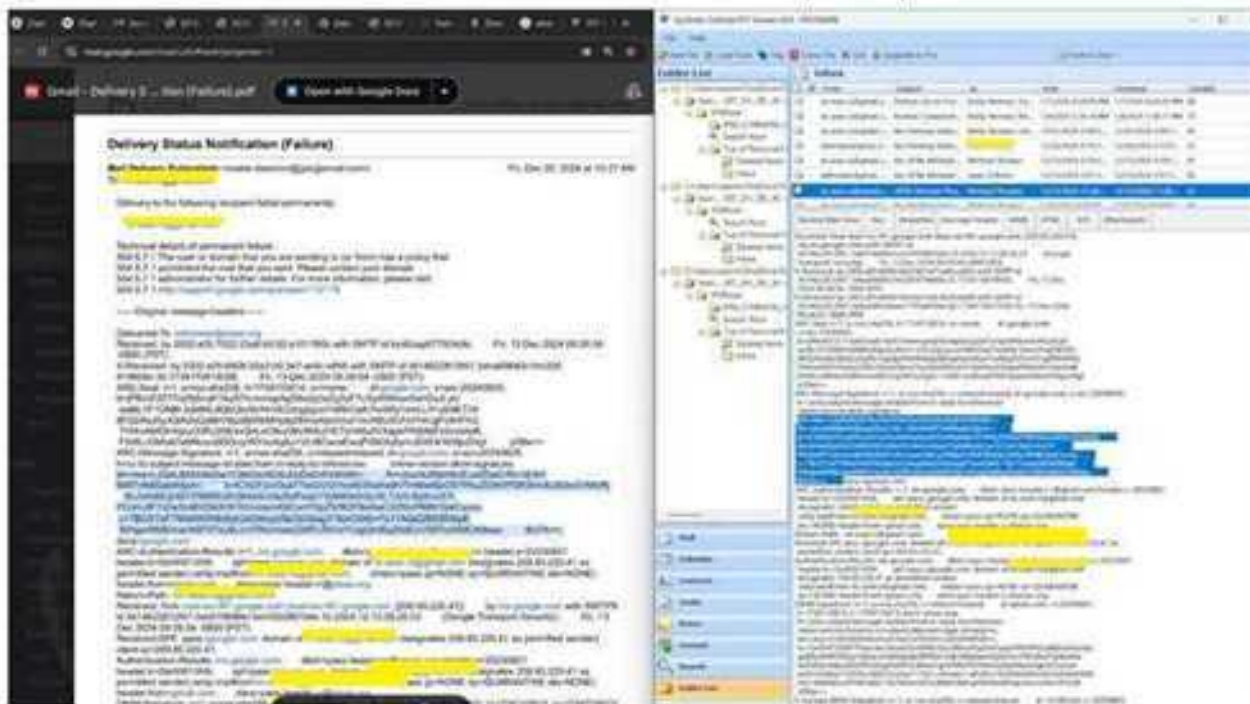
- Failure to provide logs related to email rejections, quarantines, or filtering actions prevents an accurate understanding of whether the District intentionally suppressed Title IX-related communications.
- Failure to produce the Title IX Coordinator's publicly accessible contact information as of 2/14/2025, as required by 34 C.F.R. § 106.8(b)(2).
- Failure to provide a written explanation regarding the Hidden Oaks Confidential Reporting Form, including when it was removed and why the District denied electronic submission of a Title IX complaint, as well as denied electronic submission of my daughter's answers to her Title IX interview.

These omissions severely undermine the integrity of the still active Title IX investigation and may constitute retaliatory obstruction under 34 C.F.R. § 106.71.

Note that while the District does now finally admit that a quarantine action was applied to email

happened to my email sent to the schoolboard inbox. However, as can be seen in the following screenshot, the ARC signature contained in the bounceback notification is a 1-1 match with the copy of the email id

inbox -



This is conclusive proof that the District's statements are false.

- The District originally denied quarantining the email, yet it now admits that it was quarantined.
- If the ARC signature match does not appear on the quarantined email, then at least one additional email exists that the District has failed to disclose.
- The District's explanation regarding email handling has shifted multiple times, reinforcing the appearance of intentional noncompliance with FERPA and Title IX evidentiary requirements.

Given these contradictions, I am now demanding an immediate, sworn explanation regarding:

- Why the District previously denied quarantining this email.
- Why these records were not disclosed in prior responses.

I am formally demanding the District respond with the following records within the timeframe required by statute:

addresses:

- mtthomas@plsas.org

These logs must include rejection notices, filtering actions, quarantine actions, and any administrative actions applied to these emails.

2. A sworn statement from the District's IT department confirming whether:
 - System logs, filtering records, and email rejections exist for the requested emails.
 - Any such records have been deleted, altered, or are otherwise unavailable.
 - Whether the District manually or automatically applied any filtering or blocking actions to my emails.
3. Title IX Coordinator Public Contact Records from 2/14/2025, including:
 - A copy of the webpage listing the Title IX Coordinator's contact information as it appeared on that date.

- A written explanation of when and why the District removed the Hidden Oaks Confidential Reporting Form.
 - If the District continues to withhold this information, details on the specific statutory basis by which they do so.
4. A detailed written explanation for why the District falsely claimed that no electronic submission method existed for Title IX complaints, despite evidence suggesting such a system was in place.
- If the District continues to withhold this information, details on the specific statutory basis by which they do so.
5. In the email being discussed, Michael responded to my FERPA request by stating that no information can be provided. As the victim, My daughter would have been a subject in any discussion about a deviation from posted discipline policy. The proper response would have been to confirm or deny whether such a record existed, and then assert data privacy protections if appropriate. What is the policy or statutory basis under which the District refuses to confirm or deny the existence of this record?

Sincerely,

[Quoted text hidden]

To:

[Quoted text hidden]

EXHIBIT 3E



March 12, 2025

Dear Mr. [REDACTED]

I am writing in response to your two emails dated February 28, 2025, and your email from March 3, 2025. The District has made every effort to provide you with the requested information promptly while managing the numerous other responsibilities of our staff. As outlined in my expected response timeline, I am providing this response on the anticipated date of March 13, 2025.

1. Demands for unredacted files

The District denies this request. All responsive data has been provided. Redactions of private educational data on students other than your child have been made pursuant to Minn. Stat. § 13.32. Private personnel data has been redacted pursuant to Minn. Stat. § 13.43.

2. Multiple requests to create data

In the three emails referenced, you have made several repetitive demands for the District to generate data. Under the Minnesota Government Data Practices Act, the District is not obligated to respond to inquiries, engage in debates, or create new data in response to such demands. To date, existing responsive data has been provided in accordance with the evolving requests and numerous emails received. The District has consistently responded to requests in good faith, despite the complaints and requests continuing to evolve without a clear or defined resolution being articulated from your end.

3. Repeated data request

[REDACTED]

have been provided in PDF format, along with PST file format. The PST file enables the recipient to access the requested header information. Please note that when the District conducts email searches between specific addresses, the system does not filter or block any emails, nor does it retain rejected or undelivered messages. As such, the District has no further responsive data beyond what has been provided.

Additionally, the District is unclear on what further information you are requesting regarding a "full email log." You have already received the full set of emails from our system in PDF format, as well as the PST file, which allows you to review the requested header details.

4. Data request clarification

In one of your emails, you requested a full, unredacted version of page 4 of the "SO Data Request File 3," which states "Document is unavailable." This page pertains to the audio file retrieved by the system as part of the data request. When the system processes the data request into a PDF, it generates a corresponding page for the audio file. Please note that the audio file was included in the email sent on February 13, 2025. There is no additional responsive data for this request.



5. New public data request

Upon reviewing the three emails, we have identified one new public records request for "any records, policies, or training materials addressing staff responsibilities when witnessing acts of violence or harassment." We will begin gathering the requested data and respond as soon as possible. Since neither you nor your student is the subject of this request, it will be processed in accordance with the procedures for existing public records requests. As noted above, all responsive data for the other requests outlined in the three emails has already been provided.

6. Investigation into claims of sexual harassment and assault

The District made several attempts to gather information from your student, offering various options, including written responses in lieu of a live interview, but all attempts were declined. As a result, the investigation was limited by the absence of crucial details such as witness names, timelines, and evidence. Nevertheless, the District conducted a thorough investigation by interviewing staff and students associated with your student. Despite these efforts, the investigation could not substantiate the allegations due to the lack of concrete evidence and inability to identify the respondent/s. Attached you will find a written determination.

Closing

Going forward, the District will only respond to data requests that are properly submitted. To facilitate effective communication, we strongly encourage you to use the Data Request Form, which can be accessed here: [Data Request Form](#)

As outlined in Dr. Thomas's response on January 24th, the District is unable to continue addressing repeated and evolving complaints submitted under various headings through multiple, demanding emails with increasingly short and arbitrary timelines. District staff have consistently addressed each of your concerns in a timely and good-faith manner. Despite these efforts, you continue to seek debates regarding District policies and applicable law. The District is not engaged in such debates. Should you disagree with the District's processes, you are welcome to seek relief through the appropriate entities.

Sincerely,

Emily Herman
Executive Director of Administrative Services

CC: Dr. Michael Thomas, Superintendent

EXHIBIT 3F

March 13, 2025 Response11 messages

Cc: Michael Thomas <mthomas@plsas.org>

Please see the attachments below for responses to your recent emails.

Thank you,
Emily

**Emily Herman**

Executive Director of Administrative Services

Title IX Coordinator & Human Rights Officer

Prior Lake-Savage Area Schools

952-226-0021

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2 attachments**2024 Title IX Sexual Harassment Complaint - Summary Report.pdf**

57K

**March 13 2025 E. Herman Response.pdf**

118K

Cc: Michael Thomas <mthomas@plsas.org>

As a follow-up, after continued research and receiving additional support from Google Administration, our tech department was able to generate the attached report today.

As noted in the letter sent yesterday, we remain unclear about what you are specifically seeking with a request for a "full email log." However, we wanted to share this report as a new data option, which reflects email exchanges between

Thank you,
Emily



Emily Herman
Executive Director of Administrative Services
Title IX Coordinator & Human Rights Officer
Prior Lake-Savage Area Schools
952-226-0021

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[Quoted text hidden]

 **SeanLogs021225to031425.xlsx**
27K

Cc: Michael Thomas <mthomas@plsas.org>

Hello Emily,

Thank you for your patience awaiting my response - I note I have been out of town and without access to email for the past two weeks. This looks like a great start - when can I expect to receive a fully responsive dataset that includes all emails I have sent, including the original emails reporting the sexual assaults?

Additionally, while I got in late last night and have yet to have a chance to fully review your earlier responses, it appears while preparing your responses to my data request you had time to complete the title ix investigation and come to a dismissal decision. Please consider this notification of my intent to appeal - I will follow up with full details later this evening, but at a bare minimum I would call out that the district was aware that a police investigation had been conducted into the matter, and never once expressed to it was having difficulty identifying the perpetrator or asked any follow-up questions. Additionally, I note the dismissal calls out [REDACTED] refused to submit an electronic response to interview questions, whereas the actual offer you made stated -

"We appreciate your concern with interviewing for your daughter. As mentioned previously, our investigation is separate from other entities and therefore we cannot use an outside interviewer for our process. We would still appreciate the opportunity to meet with you and your daughter either in-person or virtually. However, we would like to offer an alternative option. If you still do not wish to interview with us, we could send a set of written questions for our initial interview that you could complete with your daughter. **It would be best that the written responses are either dropped off at or mailed to Hidden Oaks or District Services Center to either [REDACTED] or myself.** This would ensure the email quarantine process would not impede the delivery of the responses."

Thank you,
[REDACTED]

[Quoted text hidden]

Cc: Michael Thomas <mthomas@plsas.org>

Hello Emily,

It has been almost a month since I have heard from you. When can I expect to receive the full Google Workspace Email Log export? An update on my appeal?

I note both Google and ChatGPT put the time it would take a Google Workspace administrator to generate this data at between 20 minutes to an hour and a half, with the later estimate including 20 minutes for the administrator to locate, read, and understand the instructions. Can you help me understand why it has taken months?

Thank you,

[Quoted text hidden]

2 attachments

 **Google_Workspace_Email_Log_Timing_Estimate.pdf**
3K

 **GoogleWorkspaceLoginInstructions.pdf**
312K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

2 attachments

 **Data Request Form.pdf**
82K

 **Formal Data Request.pdf**
164K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached. Also, I note there was an error in the "Data Request Form" submitted earlier today - please provide

Thank you,

[Quoted text hidden]

2 attachments

 **Formal Request - 506-1.pdf**
143K

 **PLSAS_506.1 - Bullying_Prohibition.pdf**
199K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

 **Formal Request Weapons Policy.pdf**
265K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

 **Data Correction - Weapons Investigation.pdf**
703K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached Formal Title IX complaint+request for appeal process

[Quoted text hidden]

 **titleixcomplaint_merge.pdf**
808K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

 **forwarding_activity_in_logs.pdf**
1598K

Cc: Michael Thomas <mthomas@plsas.org>

I am writing to follow up on a batch of data subject requests I submitted to the District under the Minnesota Government Data Practices Act (Minnesota Statutes Chapter 13). I emailed these requests on **May 5, 2025** and **May 6, 2025**, respectively. As of today (May 7, 2025), more than 48 hours after the first request, I have not received any acknowledgment or confirmation that the District has received these requests. I am concerned about the lack of response, especially given the timely response requirements in Chapter 13.

Contrary to District framing, the timelines and response expectations I put forth are not arbitrary or unreasonable. Minnesota law **obligates prompt action** on data requests. In particular, **Minn. Stat. § 13.03, subd. 2** requires every government entity to establish procedures to ensure that requests for government data are handled "in an appropriate and prompt manner"[revisor.mn.gov](https://www.revisor.mn.gov). Furthermore, because my requests are for data about myself (i.e., I am the data subject), the timeline in **Minn. Stat. § 13.04, subd. 3** applies. That provision clearly states that the responsible authority "**shall comply immediately, if possible**" with a data subject's request, "**or within ten days of the date of the request, excluding Saturdays, Sundays and legal holidays, if immediate compliance is not possible.**"[revisor.mn.gov](https://www.revisor.mn.gov) In other words, the Data Practices Act expects a very prompt response for requests made by the subject of the data – up to a maximum of ten business days.

Failure to promptly acknowledge or respond to a data request is not a trivial matter. The Minnesota Department of Administration has issued guidance and advisory opinions underscoring that agencies must respond timely and cannot ignore requests. For example, in **Advisory Opinion 19-002 (2019)**, the Commissioner of Administration opined that when a state board "**did not reply to the data request**", that "**is not an appropriate response to a request for access to government data.**"content.govdelivery.com In another opinion, the Commissioner emphasized that an entity's failure to provide a data subject with access to their data within the ten-business-day window violates the statute – the City in that case "**did not respond appropriately**" when it "**did not respond within 10 business days**" as required by Minn. Stat. § 13.04mn.gov. These opinions make clear that **prompt communication and compliance** are mandatory obligations under Chapter 13, not optional courtesies.

Even if gathering the requested data might take up to the ten days allowed by law, **basic acknowledgment of receipt** is widely regarded as a minimum best practice. Promptly confirming that you received my request and are processing it is important for transparency and to assure me that the request is being handled. Many government entities follow this practice of acknowledging requests upon receipt as part of their Data Practices procedures [wlssd.com](https://www.wlssd.com). The lack of any acknowledgement from the District thus far raises concerns that my requests may not have been received or logged, or that they are not being handled in the statutorily required manner.

In light of the above, I respectfully request the following:

- **Immediate acknowledgment of receipt** of my May 5 and May 6 data requests. Please confirm that these email requests were received by the responsible authority or designee, and the dates on which they were received.
- **Estimated timeline for compliance with my requests.** Please inform me when I can expect to inspect or receive copies of the requested data. As noted, Minn. Stat. § 13.04, subd. 3 requires that data subject requests be fulfilled "**immediately, if possible,**" and absolutely no later than ten business days from the request date [revisor.mn.gov](https://www.revisor.mn.gov). An indication of when the District plans to provide the data (or an explanation if more time is needed for a complex request) will help ensure we remain within statutory compliance.

I want to emphasize that **these requests were properly submitted under Chapter 13**, and the District has a legal obligation to respond **promptly and fully**. At minimum, a timely acknowledgment is expected. I am eager to cooperate and willing to clarify any aspect of my requests if needed. However, I need confirmation that the District is aware of the requests and is moving forward to fulfill them as required by law.

Thank you for your prompt attention to this matter. I look forward to your immediate acknowledgment and an update on the processing of my data requests. If there is any reason for the delay or if additional information is required from me, please let me know right away. Prompt communication will help avoid any further issues and ensure compliance with the Minnesota Government Data Practices Act.

Sincerely,

[Redacted signature]

[Quoted text hidden]

EXHIBIT 3G



Dear Mr. [REDACTED]

I am writing in response to your emails dated March 27, 2025, and April 22, 2025, May 6, 2025

1. Intent to Appeal

In your March 27 email, you stated: *"Please consider this notification of my intent to appeal - I will follow up with full details later this evening..."* Please note, the District does not act on notices of intent. Appeals must meet the procedural requirements outlined in District policy, including submission within the required timeframe. Your message was received after the appeal deadline had passed. As previously communicated, the District has dismissed the complaint based on the reasons provided to you, and the appeal window is closed.

2. Continued Requests for Email Log

The District has fulfilled your data request related to the requested data. You have been provided with:

- PDFs of the relevant data
- PST files containing ability to access metadata and header information
- An Excel log sent on March 14, 2025

The District has consistently communicated that it does not understand what additional information you are seeking when referring to a "full email log," and you have not identified any specific data that is missing. As explained previously, the Minnesota Government Data Practices Act does not require the District to respond to inquiries, engage in debate, or create new data. Accordingly, the District considers this request fully addressed and has no additional data responsive to it.

3. May 5th and May 6th

5/5 Formal Request for Clarification Regarding District Position on Policy 506.1 Applicability and Staff Responsibilities

Despite the submission on the District's data request form, this is not a request for existing data. The request claims educational institutions "are required to respond" to inquiries and "clarify inaccuracies or omissions in educational records." That is not a correct statement of the applicable federal regulations. 34 C.F.R. § 99.10 requires an educational institution to "respond to reasonable requests for explanations and interpretations of the records." § 99.11, which is also cited, allows educational institutions to charge fees for copies of education records, which the District has not done here.

The requests here are not reasonable requests related to education records governed by FERPA. The requests here demand the District identify specific language in policy and training materials that supports specific statements the District has made in prior correspondence. No such response is required by law.

5/6 Formal Data Request

Most of this communication is not a data request. It appears to be an AI-generated interpretation of applicable laws. To the extent portions of the seven-page legal analysis can be understood to be data requests, the District responds as follows:

- You have already been provided with educational data on your child related to your Title IX complaint. No new data has been added since your prior request. Another copy is provided with this response.
- Your written statements are included in the investigative file you previously received. No new data has been added since your prior request. Another copy is provided with this response.
- The 2020 Title IX regulations require the investigator to provide equal access to evidence to the parties during an investigation and prior to completion of the investigation report. 34 C.F.R. § 106.45(b)(5)(vi). The complaint was dismissed. Nonetheless, you have received a complete copy of the District's investigative file with redactions as described elsewhere in this communication. No new data has been added since your prior request. Another copy is provided with this response.

5/6 Request for Clarification of Weapons Policy Interpretation and Access to Underlying Decision Criteria under FERPA and Minn. Stat. § 13.04

The demands in this communication fall into three categories: requests for the District to create data, requests for public data, and requests for private data on your child. With respect to your requests for a "clear written explanation," "Confirmation," and a "statement," such data does not exist and the District declines to create new data.

With respect to the public data and private data on your child, no new responsive data has been created since your prior request for this data. Nonetheless, we have attached another copy. Private educational data on other students has been redacted pursuant to Minnesota Statutes § 13.32, subd. 3 and 34 C.F.R. § 99.31. Private personnel data on employees has been redacted pursuant to Minnesota Statutes § 13.43, subd. 4. Data protected by the attorney-client privilege has been withheld and redacted pursuant to Minnesota Statutes § 13.393.

5/6 Request for Education Record Correction – HOMS Investigation Process Summary

The District will respond to this request within the timeline established by Minnesota Statutes § 13.04, subd. 4(c).

5/6 Title IX Complaint

Despite the submission on the District's data request form, this is not a request for existing data. It is also not a formal Title IX Complaint pursuant to the applicable regulations because it does not allege sexual harassment. The District has no obligation to respond to this request.

Closing

As previously stated by Dr. Thomas and Ms. Herman, the District cannot continue to expend



resources responding to ongoing attempts to debate policy, question fulfilled data requests, or reinterpret legal obligations. District staff have responded to your inquiries in a timely and thorough manner. Despite this, your communications continue to reflect a pattern of dispute rather than resolution.

Moving forward, the District will respond only to communications that are required under District policy and state law. We will only consider new data requests that are submitted properly and in accordance with our established procedures. To ensure clarity and efficiency, we encourage you to use the Data Request Form, available here: [Data Request Form](#).

If you wish to continue disputing the District's processes, conclusions, policies, or interpretations of applicable statutes, we encourage you to direct those concerns to the appropriate external entities, as the District will not engage in ongoing debate on these matters.

Sincerely,

A handwritten signature in black ink that reads "Emily N. Hansen".

Executive Director of Administrative Services

Itemized Redaction List

Bates/Page	Line	Redaction reason
PLSAS-EX3-001	2	Redacted to protect personal privacy.
PLSAS-EX3-002	4	Redacted to protect personal privacy.
PLSAS-EX3-004	4	Redacted to protect personal privacy.
PLSAS-EX3-009	6	Redacted to protect personal privacy.
PLSAS-EX3-009	5	Redacted to protect personal privacy.
PLSAS-EX3-009	7	Redacted to protect personal privacy.
PLSAS-EX3-009	8	Redacted to protect personal privacy.
PLSAS-EX3-009	11	Redacted to protect personal privacy.
PLSAS-EX3-009	28	Redacted to protect personal privacy.
PLSAS-EX3-009	2	Redacted to protect personal privacy.
PLSAS-EX3-010	6	Redacted to protect personal privacy.
PLSAS-EX3-010	8	Redacted to protect personal privacy.
PLSAS-EX3-010	14	Redacted to protect personal privacy.
PLSAS-EX3-010	17	Redacted to protect personal privacy.
PLSAS-EX3-010	36	Redacted to protect personal privacy.
PLSAS-EX3-011	17	Redacted to protect personal privacy.
PLSAS-EX3-011	4	Redacted to protect personal privacy.
PLSAS-EX3-011	8	Redacted to protect personal privacy.
PLSAS-EX3-011	29	Redacted to protect personal privacy.
PLSAS-EX3-011	33	Redacted to protect personal privacy.
PLSAS-EX3-011	30	Redacted to protect personal privacy.
PLSAS-EX3-011	34	Redacted to protect personal privacy.
PLSAS-EX3-011	7	Redacted to protect personal privacy.
PLSAS-EX3-011	3	Redacted to protect personal privacy.
PLSAS-EX3-011	6	Redacted to protect personal privacy.
PLSAS-EX3-011	18	Redacted to protect personal privacy.
PLSAS-EX3-011	28	Redacted to protect personal privacy.
PLSAS-EX3-011	32	Redacted to protect personal privacy.
PLSAS-EX3-011	36	Redacted to protect personal privacy.
PLSAS-EX3-011	2	Redacted to protect personal privacy.
PLSAS-EX3-011	29	Redacted to protect district employee privacy.
PLSAS-EX3-011	33	Redacted to protect district employee privacy.
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